

THACKER, Circuit Judge:

Stephen Porter (“Appellant”) filed suit alleging that he suffered adverse employment action in retaliation for unpopular protected speech. The district court dismissed Appellant’s complaint. Upon review, we affirm the dismissal because we find that Appellant has failed to allege a causal connection between the only communication that is arguably protected under the First Amendment and the alleged adverse employment action.

I.

A.

Appellant has been a tenured professor at North Carolina State University (“NCSU”) since 2011. He teaches courses in graduate-level statistics and research methods in the Department of Educational Leadership, Policy, and Human Development (“the Department”), within the College of Education. At the time Appellant was hired, he joined the Department’s Higher Education Program Area (“HEPA”). The HEPA is one of several degree programs within the Department. The Department offers both a master’s degree and a doctoral (“Ph.D.”) program. There are no undergraduate students in the Department. Appellant has limited involvement with the master’s degree program; no master’s degree advisees; and does not attend events related solely to the master’s degree. Instead, Appellant alleges that, prior to suffering adverse employment action, he spent considerable time on Higher Education Ph.D. activities, including advising HEPA Ph.D. students; serving on HEPA Ph.D. committees; and actively recruiting prospective Ph.D. students.

In 2015, the College of Education created a Scholar Leader Ph.D. program. As part of this change, each Ph.D. program within the College of Education became part of the Ph.D. Program Area of Study, which is distinct from a Program Area. Appellant alleges that the change created, “in theory . . . two separate tracks, with [m]aster’s degrees and certificates located within the . . . Program Areas, and all Ph.D. programs located within the new Ph.D. Program Areas of Study.” J.A. 11.¹ But Appellant alleges that, in practice, the new distinctions were ignored and both master’s degree and Ph.D. program matters continued to fall within the parameters of the original Program Areas.

B.

Appellant’s Complaint alleges that he has been outspoken in recent years concerning the focus on “so-called ‘social justice’ affecting academia in general” and “his concern that the field of higher education study is abandoning rigorous methodological analysis in favor of results-driven work aimed at furthering a highly dogmatic view of ‘diversity,’ ‘equity,’ and ‘inclusion.’” J.A. 11. In this vein, Appellant identifies three statements or communications he made between 2016 and 2018 which, in his view, are protected speech. According to Appellant, he was eventually subject to adverse employment actions in retaliation for these three communications. Appellant brings his claims against the Board of Trustees of NCSU; the Chancellor of NCSU; Mary Ann Danowitz, former Dean of the College of Education; John K. Lee, current head of the

¹ Citations to the J.A. refer to the Joint Appendix filed by the parties in this appeal.

Department; Penny A. Pasque, former head of the Department; and Joy Gaston Gayles, Professor in the Department and Program Coordinator (collectively, “Appellees”).

The first communication occurred in spring 2016. Appellant attended a Department meeting regarding a proposal to add a question about diversity to student course evaluations. Appellant expressed his concern about the proposed question (the “survey question incident”) and suggested that the proposal had been made without proper research. According to Appellant, the discussion “was amicable in tone, although perhaps embarrassing” to the presenter. J.A. 12. In May 2017, NCSU’s Office of Institutional Equity and Diversity issued a report which referenced the survey question incident and labeled Appellant as a “bully.” *Id.* Appellee Pasque became head of the Department at the beginning of 2017–2018 academic year and discussed the report with Appellant during a meeting in November 2017. In January 2018, Appellee Pasque emailed Appellant to restate her concerns regarding “bullying” and invited Appellant to respond. Appellee Pasque’s email was later included in Appellant’s personnel file without his knowledge.

The second communication relates to an April 2018 article published in the journal *Inside Higher Ed*. See Colleen Flaherty, *Questions About Job Candidate’s Past*, *Inside Higher Ed* (Apr. 11, 2018), <https://perma.cc/U22C-NKKB>; <https://www.insidehighered.com/news/2018/04/11/anonymous-faculty-members-nc-state-object-job-candidate-who-was-ousted-ohio-state> (last visited July 5, 2023). The article criticized a faculty search committee at NCSU chaired by Alyssa Rockenbach, one of Appellant’s colleagues in the Department. The day the article was published, Appellant sent an email (the “faculty hiring email”) to all of the Department faculty. The email linked

the article and said, “Did you all see this? . . . This kind of publicity will make sure we rocket to number 1 in the rankings. Keep up the good work, Alyssa!” *Id.* at 15.

Appellee Pasque met with Appellant about the faculty hiring email the next week and asked him about his intent in sending the email. Appellant alleges he was concerned that Rockenbach had “cut corners” in vetting a candidate “out of a desire to hire a Black scholar whose work focused on racial issues.” J.A. 14. Appellant later learned that Appellee Gayles had forwarded the faculty hiring email to Appellee Pasque and expressed her dissatisfaction. Appellant also learned that Rockenbach had forwarded the faculty hiring email to Appellees Pasque and Danowitz, as well as to the Associate Vice Provost for Equal Opportunity and Equity. During a follow up meeting with Appellee Pasque on April 24, 2018, Appellant alleges Appellee Pasque told him “she had spoken with the administration to find ways to exclude [Appellant] from critical aspects of his job. Specifically, she inquired whether [Appellant] had to remain a member of the [HEPA] or whether he could be a member of the department without a Program Area.” J.A. 15. Nonetheless, Appellant received a good annual evaluation that year, albeit with a notation that he, and all faculty, were expected to be collegial.

The final communication occurred on September 3, 2018, when Appellant published a post on his personal blog entitled “ASHE Has Become a Woke Joke.”² J.A. 17. Appellant’s “Woke Joke” post mentioned research his colleague had gathered about the topics for discussion at an upcoming ASHE conference. According to Appellant, this

² “ASHE” refers to the Association for the Study of Higher Education.

research demonstrated that the focus of the conference had shifted from general, post-secondary research to social justice. Appellant's post concluded with his commentary, "I prefer conferences where 1) the attendees and presenters are smarter than me and 2) I constantly learn new things. That's why I stopped attending ASHE several years ago . . ." *Id.* at 38. Appellant's blog post generated controversy on social media.

As the 2018–2019 academic year began, Appellee Danowitz met with the HEPA faculty about potentially hiring a new faculty member. Instead of discussing the candidate as planned at a HEPA faculty meeting, Appellee Pasque invited Appellant to a virtual meeting on October 15, 2018, with herself, Appellee Gayles, and two others. In that meeting, Appellee Pasque proposed that Appellant leave the HEPA and join a new program area, the Higher Education Policy Program Area, where Appellee Pasque, Appellant, and the new hire would be the only faculty members. Taken together with their April 24, 2018 meeting, Appellant alleges this was the second time in six months that Appellee Pasque had suggested he leave the HEPA. Appellant asserts that the meeting then focused on his refusal to leave the HEPA and the impact it had on [the Department's] ability to bring in the new faculty member. "In frustration at this apparent ambush, [Appellant] said 'Give me a f***ing break, folks. I was the one who said [the potential hire] should come. And now I'm the bad guy because I don't want to leave Higher Ed for a non-existent program area.'" J.A. 19–20. Appellant received a letter from Appellee Pasque on October 18, 2018, chastising him for his use of profanity and expression of frustration at the meeting.

On November 7, 2018, Appellant received another letter from Appellee Pasque expressing concerns about Appellant's collegiality. The letter highlighted three things: (1)

the 2017 report that referenced the survey question incident and labeled Appellant a bully; (2) the faculty hiring email; and (3) Appellant's use of profanity in response to being asked to leave the HEPA. The letter made no mention of Appellant's "Woke Joke" blog post. Rather, Appellee Pasque's letter indicated that if Appellant "fail[s] to repair the relationships among faculty in the Higher Education program" or displays a "lack of collegiality" again, Appellant would be removed from the HEPA. J.A. 20.

One week later, Appellant learned that his "Woke Joke" blog post had been criticized by the president of ASHE during her keynote address at the ASHE conference. On November 19, 2018, Appellant received an email from Appellee Pasque informing him that students in the Department "were having 'strong reactions' to the keynote and that the department 'need[ed] to pay attention to' them." J.A. 21. Appellee Pasque proposed a "community conversation about ASHE" where Appellant would be expected to address students' concerns about his blog. *Id.* The purpose of the meeting would be "to help graduate students reconcile the 'great teacher' they knew from NCSU with what they had heard about [Appellant] from the president of ASHE." *Id.* According to Appellant, Appellee Pasque eventually stated that "only two out of about 60 doctoral students spoke with her about the matter." *Id.* On February 19, 2019, Appellant met with Appellee Pasque to discuss the issue further. During that meeting, Appellee Pasque "repeatedly expressed her frustration that [Appellant] had not proactively addressed student and faculty concerns about 'what happened at ASHE.'" *Id.* at 22. Appellee Pasque indicated that this failure to act was another example of Appellant's lack of collegiality.

On July 5, 2019, Appellant received his annual evaluation which notified him that Appellee Pasque had removed him from the HEPA because “the Higher Education faculty were not able to make concerted progress” on resolving issues within the Program Area. J.A. 23. And because being removed from the HEPA “reduced [Appellant’s] departmental workload,” Appellant was notified that he “would be expected to teach a fifth course.” *Id.*

In July 2019, Appellee Pasque left NCSU and was replaced by Appellee Lee. After Appellant filed an internal grievance on August 28, 2019 regarding his removal from the HEPA and the added course requirement, Appellee Lee informed Appellant that he would not be required to teach the extra course. But the requirement was not removed from Appellant’s personnel file. Appellant alleges that, as a consequence of being removed from the HEPA, he was barred from attending the HEPA orientation for new Ph.D. students, the HEPA welcome cookout, and the HEPA retreat. Appellant also alleges that he was excluded from the Diagnostic Advisement Procedure (“DAP”) process for second-year Ph.D. students, including for his own advisees.³ According to Appellant, this exclusion negatively impacted his ability to advise his students.

In October 2019, Appellant met with Appellee Lee to discuss his ongoing concerns about his exclusion from HEPA Ph.D. activities. Appellant was told he could continue to advise Ph.D. students, but that because of his removal from the HEPA, he would likely not

³ NCSU’s Higher Education Student Handbook provides that a student’s advisor should be one of two readers reviewing writing samples submitted by student candidates for the DAP and that after those reviews, there should be a meeting of all HEPA faculty members to discuss the students going through the DAP.

be able to participate in meetings concerning the DAP process or in reviewing his students' dissertation prospectuses. Appellant expressed concern that students would not choose him as their advisor if he could not participate in the DAP process or review prospectuses. Appellee Lee responded that this was something Appellant would have to talk to students about. Appellant also voiced concern that "the process is being set up so that when I go up for my post-tenure review a couple of years from now, I'm not going to have any advisees. And then you and Dean Danowitz can say well, we need to strip [Appellant] of tenure and fire him because he's not fulfilling his job duties." J.A. 26. Appellee Lee replied, "Right, I hear you." *Id.*

In December 2019, Appellant was prohibited from attending the Ph.D. program admissions meeting, which is when advisees are assigned. And in Spring 2020, Appellant was barred from attending a Ph.D. student recruitment weekend. Finally, in October 2020, some faculty in the Department proposed a new Ph.D. Program Area of Study in Higher Education Access, Equity, and Justice. Appellant was not asked whether he would be interested in participating in this new Program Area of Study, and all faculty members with the exception of Appellant were invited to join. One faculty member who was invited declined to join the new Program Area of Study and remained in the Higher Education Program Area of Study with Appellant. Appellant and the other faculty member were informed in March 2021 that they could make offers of admission to doctoral candidates they wanted to advise but that those candidates would be encouraged to switch to the new Program Area of Study once they arrived.

C.

Appellant filed his Complaint on September 14, 2021. The Complaint alleges, pursuant to 42 U.S.C. § 1983, Appellant's First and Fourteenth Amendment rights were violated when Appellees removed him from the HEPA, excluded him from HEPA events, and did not invite him to join the new Program Area of Study in Higher Education Access, Equity, and Justice. In Appellant's view, the survey question incident, the faculty hiring email, and the "Woke Joke" blog post were all protected speech. He argues that Appellees unlawfully retaliated against him for those communications.

Appellant claims that, with the creation of the new Program Area of Study in Higher Education Access, Equity, and Justice -- from which he was excluded -- he has been effectively siloed into a Program Area of Study that is drained of students and resources. According to Appellant, this has severely compromised his ability to perform critical job duties, such as advising Ph.D. students, leaving his future at NCSU in jeopardy. Appellees moved to dismiss the complaint in its entirety for lack of subject matter jurisdiction and failure to state a claim upon which relief can be granted pursuant to Rules 12(b)(1) and 12(b)(6) of the Federal Rules of Civil Procedure.

The district court held -- and Appellant does not dispute -- that his claims for damages against the Board of Trustees and the individual defendants in their official capacities are barred by sovereign and Eleventh Amendment immunity. The court also determined that Appellant's "requests for injunctive relief regarding his permission to join the new Higher Education Opportunity, Equity, and Justice Program Area of Study and the removal of the requirement that he teach a fifth course are not prospective, and *Ex Parte*

*Young*⁴ does not provide an exception to Eleventh Amendment immunity.” J.A. 47. Finally, the district court held that while Appellant’s request for reinstatement may state a claim for prospective injunctive relief, Appellant has failed to state a First Amendment retaliation claim. And, even if Appellant had plausibly alleged a First Amendment retaliation claim, the district court held that the individual defendants would be entitled to qualified immunity.

II.

We review a dismissal pursuant to Federal Rule of Civil Procedure 12(b)(1) *de novo*. See *Balfour Beatty Infrastructure, Inc., v. Mayor and City Council of Baltimore*, 855 F.3d 247, 251 (4th Cir. 2017). Likewise, “[w]e review *de novo* a district court’s grant of dismissal under Federal Rule of Civil Procedure 12(b)(6).” *Laurent-Workman v. Wormuth*, 54 F.4th 201, 210 (4th Cir. 2022). “To survive a motion to dismiss, a complaint must contain sufficient factual matter, accepted as true, to ‘state a claim to relief that is plausible on its face.’” *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (quoting *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 570 (2007)); see also Fed. R. Civ. P. 12(b)(6).

We review “a qualified immunity-based grant of a motion to dismiss *de novo*.” *Ray v. Roane*, 948 F.3d 222, 226 (4th Cir. 2020). “To determine whether a complaint should survive a qualified immunity-based motion to dismiss, we exercise ‘sound discretion’ in following the two-prong inquiry set forth by the Supreme Court, analyzing (1) whether a

⁴ *Ex Parte Young*, 209 U.S. 123 (1908).

constitutional violation occurred and (2) whether the right violated was clearly established.” *Id.* (quoting *Pearson v. Callahan*, 555 U.S. 223, 236 (2009)).

III.

We begin with the district court’s determination that Appellant’s complaint failed to state a claim for First Amendment retaliation.

“When a government employee claims that he was disciplined because of his speech, we use a three-prong test to determine if the employee’s rights under the First Amendment were violated.” *Crouse v. Town of Moncks Corner*, 848 F.3d 576, 583 (4th Cir. 2017) (citing *McVey v. Stacy*, 157 F.3d 271, 277 (4th Cir. 1998)). “The first prong asks whether the employee ‘was speaking as a citizen upon a matter of public concern or as an employee about a matter of personal interest.’” *Id.* The first prong can be further “divided into two inquiries: whether the speech was made as a citizen or pursuant to the employee’s duties, *Garcetti* [*v. Ceballos*, 547 U.S. 410, 421 (2006)], and whether the content of the speech addressed ‘a matter of interest to the community’ rather than ‘complaints over internal office affairs.’ *Connick* [*v. Myers*, 461 U.S. 138, 149 (1983)].” *Crouse*, 848 F.3d at 583.

The general rule is that “[w]hen public employees make statements pursuant to their official duties, the employees are not speaking as citizens for First Amendment purposes, and the Constitution does not insulate their communications from employer discipline.” *Garcetti*, 547 U.S. at 421. But when it comes to public employees who, as here, are public university professors, the analysis is more nuanced. As this Court has repeatedly recognized, the *Garcetti* rule does not extend to speech by public university faculty

members, acting in their official capacity, that is “related to scholarship or teaching.” *Id.* at 425; *see Adams v. Trustees of the Univ. of North Carolina-Wilmington*, 640 F.3d 550 (4th Cir. 2011); *see also Lee v. York Cnty. Sch. Div.*, 484 F.3d 687, 694 n.11 (4th Cir. 2007) (explaining that the Supreme Court “did not decide whether [its] analysis would apply in the same manner to a case involving speech related to teaching”). Thus, if we determine that Appellant was speaking as a public employee, we must then determine whether his speech related to “scholarship or teaching.” *Adams*, 640 F.3d at 563. If it did not, then it is unprotected pursuant to *Garcetti*.

On the other hand, “[i]f the speech was made as a citizen and addressed a matter of public concern, the second prong of the test requires a court to balance the interest of the employee in speaking freely with the interest of the government in providing efficient services.” *Id.* (citing *Pickering v. Bd. of Educ. of Twp. High Sch. Dist. 205, Will Cnty. Ill.*, 391 U.S. 563, 568 (1968)). Thereafter, if the “court determines that the employee’s interest outweighed the government employer’s interest, the third prong requires a determination that the employee’s speech caused the disciplinary action.” *Crouse*, 848 F.3d at 583 (citing *McVey*, 157 F.3d at 277–78). “In order to establish this causal connection, a plaintiff in a retaliation case must show, at the very least, that the defendant was aware of her engaging in protected activity.” *Constantine v. Rectors & Visitors of George Mason Univ.*, 411 F.3d 474, 501 (4th Cir. 2005). “Knowledge alone, however, does not establish a causal connection.” *Price v. Thompson*, 380 F.3d 209, 213 (4th Cir. 2004). Though not necessarily required, temporal proximity may create the inference of causation. *See Penley v. McDowell Cnty., Bd. of Educ.*, 876 F.3d 646, 656 (4th Cir. 2017). “[G]enerally the

passage of time . . . tends to negate the inference of [causation]” and “[w]here a plaintiff rests his case on temporal proximity alone, the temporal proximity must be very close.” *Id.* (internal quotation marks and citations omitted). In any event, the “causal requirement is ‘rigorous.’” *Raub v. Campbell*, 785 F.3d 876, 885 (4th Cir. 2015) (quoting *Huang v. Bd. Of Governors of the Univ. of N.C.*, 902 F.2d 1134, 1140 (4th Cir. 1990)). “[I]t is not enough that the protected expression played a role or was a motivating factor in the retaliation; claimant must show that ‘*but for*’ the protected expression the [state actor] would not have taken the alleged retaliatory action.” *Id.* (alterations in original) (emphasis supplied).

The district court held Appellant “failed to plausibly allege a First Amendment retaliation claim” because he failed to “plausibly allege that he ha[d] suffered adverse action or that any allegedly protected speech was the ‘but for’ cause of any alleged adverse employment action.” J.A. 51. In doing so, the district court assumed, but did not decide, that the three communications identified by Appellant were protected. Upon review, we have no trouble concluding that at least the survey question incident and the faculty hiring email were unprotected speech.

As to the survey question incident, Appellant’s complaint gives no detail as to the content of the speech. Rather, it only alleges that “[c]iting the validity standards of the American Educational Research Association, [Appellant] asked [the presenter] about what work had gone into the design of the question. Survey methodology is one of [Appellant’s] areas of research, and he was concerned that . . . [the question] might be harmful to faculty without yielding useful information.” J.A. 12. This amounts to a description of

Appellant's perspective as to his duties as an employee. Indeed, Appellant himself describes the survey question incident as "nothing more than doing his job." *Id.* at 13. This clearly does not equate to a matter of public concern. Therefore, because Appellant was speaking as an employee, we must determine whether his speech related to scholarship and teaching. We readily conclude that it did not. Appellant was not teaching a class nor was he discussing topics he may teach or write about as part of his employment. Though Appellant mentioned that survey methodology was his personal area of study, this is not enough to convert the speech, in the context of merely "doing his job," into a matter of scholarship. In excluding "speech related to scholarship and teaching," the court recognized a concern that "the teaching of a public university professor" could become the basis for adverse action if it was unprotected pursuant to the general rule. *See Garcetti*, 547 U.S. at 425, 438. While Appellant's speech here was in his capacity as an employee, it was not a product of his teaching or scholarship. Therefore, it is unprotected.

The same is true for the faculty hiring email. There, Appellant's speech consisted of asking, "Did you all see this," linking the *Inside Higher Ed* article, and sarcastically saying, "This kind of publicity will make sure we rocket to number 1 in the rankings. Keep up the good work Alyssa!" J.A. 15. The faculty hiring email expressed no viewpoint and made no mention of policy or anything else that might be of public concern. Instead, it was an unprofessional attack on one of Appellant's colleagues, sent only to other faculty members within the Department. And it plainly was unrelated to Appellant's teaching or scholarship.

On these facts, we are convinced that both the survey question incident and the faculty hiring email are not protected speech. Both instances were wholly internal communications and the facts as Appellant alleges them demonstrate that he was speaking “as an employee” rather than a citizen. *Crouse*, 848 F.3d at 583 (citing *McVey*, 157 F.3d at 277). Appellant’s communications addressed “matter[s] of personal interest” and “complaints over internal office affairs,” rather than matters of public concern. *Id.* (citations omitted). And, Appellant’s speech was not related to his scholarship or teaching. Therefore, neither the survey question incident nor the faculty hiring email are protected speech.

As to the “Woke Joke” blog post, even assuming, as the district court did, that it amounted to protected speech, Appellant fails to allege a sufficient causal connection to state a claim for retaliation. As to temporal proximity, Appellant published the blog post on September 3, 2018. NCSU made no mention of the post until November 19, 2018, when Appellee Pasque emailed Appellant about students’ reactions to the ASHE conference. And Appellant was not removed from the HEPA until July 5, 2019 -- ten months after the blog post was published and nearly eight months after Appellee Pasque first emailed Appellant regarding the post. Under these circumstances, temporal proximity is lacking.

Beyond this, the complaint itself fails to allege that the blog post was the “but for” cause of the alleged adverse employment action. *See Raub*, 785 F.3d at 885. Appellant’s complaint makes clear that he was removed from the HEPA because of his ongoing lack of collegiality -- not because of the content of his blog post. For example, Appellant was labeled as a bully because of the survey question incident. And the complaint admits that

Appellee Pasque “implied there were other claims about [Appellant] in the [2017 report]” beyond the survey question incident. J.A. 13. The complaint also alleges that in the meeting where Appellant was asked to join a new Program Area, he became “frustrated” and said “Give me a f***ing break, folks. . . .” *Id.* at 19. The complaint alleges that after this meeting, Appellant received letters from Appellee Pasque “chastising him for his use of profanity and his expressions of frustration” and again “expressing concern about his ‘collegiality.’” *Id.* at 20. Continuing on, the complaint admits that Appellant was warned that if he “‘fail[ed] to repair the relationships among faculty in the Higher Education program’ or display[ed] a ‘lack of collegiality’ again,” he would be removed from the HEPA. *Id.*

Even as to the “Woke Joke” blog post, the complaint makes clear that Appellee Pasque’s concerns were not with the content of the post, but rather with Appellant’s failure to “proactively address[] student and faculty concerns about ‘what happened at ASHE.’” J.A. at 22. And finally, the complaint alleges that Appellant was removed from the HEPA “because ‘the Higher Education faculty were not able to make concerted progress’ on resolving issues within the Program Area.” *Id.* at 23.

Taking all of this together, we cannot conclude that Appellant has sufficiently alleged that the “Woke Joke” blog post was a “but for” cause of his removal from the HEPA.

IV.

Appellant’s complaint fails to sufficiently allege a First Amendment retaliation claim. We hold that the survey question incident and the faculty hiring email were not

protected speech. Even assuming the “Woke Joke” blog post was protected speech, Appellant has failed to allege that it was a “but for” cause for any alleged adverse employment action. Therefore, the district court’s order dismissing Appellant’s complaint for failure to state a claim is

AFFIRMED.